Missouri AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence Guidance for Local Education Agencies, Version 1.0, 2025-26 (Missouri Department of Elementary and Secondary Education)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. The PDF's text layer has doubled letters in many lines, so passages marked [graphic] were transcribed from the rendered pages rather than from the extracted text.

Introduction (excerpt)

Source: page 5

… manner that enhances teaching and learning while maintaining student safety, data privacy, and academic integrity.

… professional development, instructional best practices, data privacy, and policy development.

Introduction (excerpt)

Source: page 6

This guidance enhances existing policies on technology use, data protection, academic integrity, and student support.

Challenges and Benefits of AI in Education (excerpt)

Source: page 8 [graphic]

[graphic] With that comes concerns about equity, data privacy, and the potential for over-reliance on technology.

Building-level (Schools and Administrators), Challenges (excerpt)

Source: page 9

- AI may violate copyright and intellectual property laws. Additionally, AI models often process sensitive data, raising concerns about compliance with regulations of Europe's General Data Protection Regulation (GDPR) or the Health Insurance Portability and Accountability Act (HIPAA).

District-Level (Leadership and Policy), Challenges

Source: pages 9–10 [graphic]

[graphic] Data privacy is a significant concern considering advancements in computer science and AI. To maintain the privacy and security of student data, the following actions must be considered:

- Evaluate the security protocols of the AI system, including encryption, authentication, and authorization processes, to safeguard against data breaches and cyber threats. There are various national organizations that have information on specific AI systems privacy and security standards.
- Define clearly what constitutes personally identifiable information for students, educators, and schools and remind users that this information should not be used with generative AI tools.

- Provide all users explicit training on protecting data privacy, including reminders of what qualifies as personally identifiable information.
- Avoid including identifiable student information when entering data into AI systems.
- Obtain explicit parental/guardian permission for students under 18, ensuring that parents/guardians are fully informed about the nature, capabilities, and limitations of the AI technology, as well as the data privacy and security measures in place.
- Many generative AI tools have age restrictions on usage, usually on students under the age of 13.
- [graphic] Free tools often come with tradeoffs in regard to privacy, security, and safety of your data. Know those risks before you log on.

Addressing Common Challenges: Data Privacy

Source: page 11

- **Data Privacy**
- **Concern:** Educators have concerns over how student data is collected, stored, and used by AI systems, raising privacy and security issues.
- **Response:** Educators must teach students to be cautious about the information that they include in their prompts. Prompts should never contain personal data. It is also important that educators are aware of the age restrictions and data policies of any AI tools that they use with students.
- **Response:** On the LEA level, LEAs should not allow their data or information to be used to train the vendor's models. This can be negotiated with the vendor. Know how your data will be used. Guardrails can be in place to keep your data safe. Guardrails are protocols and tools used to make sure AI systems operate within legal and technical boundaries.

Best Practices for Implementing AI in Education: Responsible Implementation (excerpt)

Source: page 12 [graphic]

[graphic] When leveraging AI, ensure data privacy compliance, data retention, and robust security measures to protect student information.

Human Oversight (excerpt)

Source: page 14

- **Monitor student interaction with AI:** Educators should observe and monitor how students interact with AI, in addition to evaluating AI results.

AI Policies: Regulations

Source: page 17

[graphic] Several regulations are relevant to the use of AI:

- Family Educational Rights and Privacy Act (FERPA) — AI systems must protect the privacy of student education records and comply with parental consent requirements.

- Children’s Online Privacy Protection Act (COPPA) — AI chatbots, personalized learning platforms, and other technologies collecting data on children under age 13 must adhere to COPPA.
- Children’s Internet Protection Act (CIPA) — Schools must ensure that AI content filters align with CIPA protections against harmful content.

AI Policies: Data Privacy

Source: pages 17–18 [graphic]

[graphic] Data privacy is a significant concern when considering advancements in computer science and AI. To maintain the privacy and security of student data, the following actions must be considered:

- Evaluate the security protocols of the AI system, including encryption, authentication, and authorization processes, to safeguard against data breaches and cyber threats.
- Define clearly what constitutes personally identifiable information for students, educators, and schools and remind users that this information should not be used with generative AI tools.
- Provide all users explicit training on protecting data privacy, including reminders of what qualifies as personally identifiable information.
- Avoid including identifiable student information when entering data into AI systems.
- Obtain explicit parental/guardian permission for students under 18, ensuring that parents/guardians are fully informed about the nature, capabilities, and limitations of the AI technology, as well as the data privacy and security measures in place.
- [graphic] Many AI services assert that they safeguard your data or do not gather it, yet it is wise for your organization to verify if these safeguards exist. Generally, it is more reliable to believe the promises of larger or reputable AI tools like ChatGPT, Copilot, or Gemini, rather than an unknown tool discovered on the internet.

Cyclical Process (excerpt)

Source: page 18 [graphic]

[graphic] As AI technology rapidly evolves, regularly reviewing and updating policies allows LEAs to integrate the latest advancements, manage potential risks like bias and privacy concerns, and remain compliant with evolving regulations.

Procurement

Source: page 18 [graphic]

[graphic] When procuring AI tools for education, ensure that all purchases align with defined educational goals that support teaching, learning, and equitable student outcomes. Privacy and ethics must be prioritized by selecting vendors that comply with data security standards and ethical guidelines for AI use in schools. AI tools must align with all state and federal data privacy laws. Evaluating AI vendors' security protocols and policies will help to protect students and educators. Engaging stakeholders in the procurement process ensures the tools meet diverse needs and address potential concerns. Including teachers will ensure buy-in and use within the classroom. Informational technologists should always play a part in procurement to maintain data security standards and guidelines. Develop a pilot testing protocol for introducing new AI platforms or AI-integrated products. Ongoing monitoring of AI systems is vital to assess effectiveness and maintain compliance with evolving regulations.

Productivity and Efficiency (excerpt)

Source: page 19 [graphic]

[graphic] As security remains a paramount concern, care must be taken to safeguard sensitive student information through advanced data protection protocols.